

The [Biosecurity Act 2015](#) (Biosecurity Act) came into effect on 16 June 2016 and provides a wide range of modern regulatory tools to encourage compliance with biosecurity requirements. These tools have recently been updated by the Biosecurity Amendment (Traveller Declarations and Other Measures) Act 2020.

Tools include:

- infringement notices
- civil penalty orders
- enforceable undertakings
- injunctions
- criminal sanctions
- monitoring and investigation powers for biosecurity officers.

Australian Border Force officers also have the power to cancel a person's visa if the person breaches the Biosecurity Act on arrival into Australia if the person has not been immigration cleared. See the [Department of Home Affairs](#) for more information.

Infringement Notice Scheme



The Biosecurity Act includes an Infringement Notice Scheme (INS), which modifies Part 5 of the Regulatory Powers (Standard Provisions) Act 2014. Biosecurity officers can issue infringement notices for alleged breaches of 52 provisions in the Biosecurity Act. These provisions apply across numerous environments, including airports, seaports, and cargo.

Infringement notices provide an effective method for dealing with certain breaches of the law without the need to go to court. They are typically used for low-level or high volume offences. An infringement notice provides an alternative to prosecution for an offence and to court proceedings for a civil penalty order. More information on the [Infringement Notice Scheme](#).

Civil penalties



The Biosecurity Act includes a number of civil penalty provisions. Contravention of a civil penalty provision does not result in imprisonment or a criminal conviction. The department can seek a “civil penalty order” from a court, which means the court will order the person to pay a financial penalty

(specified in the Biosecurity Act) for breaching the civil penalty provision. The department can issue an infringement notice for alleged contraventions of these provisions, as an alternative to court action.

Enforceable undertakings



Enforceable undertakings are voluntary, binding agreements which are enforceable in a court.

They take the form of legally-binding commitments to comply with specified provisions of the Biosecurity Act and would typically be undertaken by someone who poses a biosecurity risk due to their likelihood of non-compliance with the Act.

An enforceable undertaking can be proposed by a company or individual, or as a result of discussions between us and the other party.

We cannot require or compel you to propose an enforceable undertaking. Similarly, the department is not required to accept an enforceable undertaking.

Injunctions



The Biosecurity Act provides for injunctions. An injunction is a court order that prevents a person from contravening a provision of the Biosecurity Act, or requires them to comply with a provision of the Biosecurity Act. This provides an additional regulatory tool with which we can enforce compliance.

Criminal sanctions



The Biosecurity Act includes a number of criminal offences. We are committed to the investigation of potential offences and, where appropriate, will refer such matters to the Commonwealth Director of Public Prosecutions for potential prosecution.

Monitoring and investigation powers



The Biosecurity Act allows officers to monitor and investigate potential non-compliance with the Act.

These powers are provided under the Regulatory Powers (Standard Provisions) Act 2014. The Biosecurity Act also provides officers with additional powers to manage biosecurity risk, such as the power to be accompanied by a detector dog and the power to take samples from a premises.

Source: <https://www.agriculture.gov.au/biosecurity-trade/policy/legislation/compliance/compliance-enforcement-tools>